

Filing and Agency Submission Instructions

Circuit Court of Oregon, Josephine County

State of Oregon v. Maria-Alejandra O'Shaughnessy-Whitfield

Case 18CR0012760

1. Scope and records. This packet covers an adult Oregon circuit-court Option 1 motion under ORS 137.225(1)(a). Obtain and compare the complete OSP/LEDS history, judgment, sentence and payment records, and all charge dispositions. The court decides eligibility. Do not file with unresolved other convictions, same-episode convictions, pending charges, offense exclusions, probation revocation, GEI, immigration concerns or an objection without appropriate legal help.

The selected case is 18CR0012760 in Circuit Court for Josephine County. The requested counts are 1, 2, 3, 4, 5, 6, 7, 8. Verify all names, dates, count numbers and dispositions. The excluded count is not included in either the motion or proposed relief.

2. Waiting and completion. For the supported Class A misdemeanor conviction, review the three-year waiting period measured from conviction or release from imprisonment, whichever is later, and sentence completion. Other convictions, probation revocation, contempt categories and other offense classes require their own applicable rules; this sample does not decide those branches.

3. Fingerprints and OSP. Obtain a properly rolled FD-258 fingerprint card. Complete printed name, required signatures, date of birth and the reason APPLICATION FOR SET ASIDE ORS 137.225. Submit the completed OSP request and fingerprint card to Oregon State Police, CJIS - Unit 11, ATTN: SET ASIDE, P.O. Box 4395, Portland, OR 97208-4395. Keep proof of submission. OSP sends the results to the prosecutor; this does not replace filing the motion with the court.

4. Fees. The official motion states No Filing Fee. The held OSP form effective January 2022 prints a \$33 conviction record-check fee. Confirm the current OSP amount and accepted payment before submission; include the required check or money order payable to Oregon State Police. A court filing-fee waiver does not establish waiver of the separate OSP charge. Do not mark fee paid or fingerprint submitted until true.

5. Sign and serve. Read the motion, its attachment and every declaration. Fingerprints-filed and OSP-fee-paid boxes are deliberately unchecked until those acts occur. Sign and date the official declaration yourself only after every required statement is true. Make two copies of the motion, declaration and attachment: one for yourself and one to mail to the prosecuting attorney. Confirm that prosecutor's current address using the official county directory linked in the enclosed OJD instructions; supply the address on the mailing certificate. After actual mailing, complete its actual date, sign and date

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it. The printed defendant name is already supplied.

6. File in the circuit court where the case occurred. Submit the official motion and declaration, attachment, and proposed order in the format the clerk accepts. Confirm the court's filing method and any local requirements using the OJD court directory in the enclosed instructions. The OSP request and fingerprint card belong to the agency submission, not as substitutes for court pleadings. This review assembly groups both deliveries only for inspection; separate them before submission.

7. Objection and hearing. The enclosed official instructions describe a typical 120-day prosecutor objection period. Monitor court notices; if an objection or hearing arises, read it promptly and obtain help as needed. File and attend as the court directs. No proposed order is effective merely because it is included in this packet.

8. After an entered order. Obtain the signed order, confirm the clerk's distribution and check that the relevant court and Oregon agency records were updated. Keep your own copies securely. A set-aside does not guarantee removal from private databases or federal/out-of-state records and does not itself restore firearm rights.

Before filing: replace every synthetic fact with verified participant information; confirm current OSP fee, actual fingerprint submission and payment, the prosecutor address, every required declaration, actual signature/date and actual mailing. The OSP enclosure checkboxes must reflect items physically enclosed. Unknown agency completion and judicial signature/date are never generated.